correct analogy. Those who wish to make fun of the theory say that it fills the legal world with hopeless idiots and their State-appointed curators; but, if we mean logic, we must be careful to see that our 'corporation itself'—that *Ding an sich* which somehow or another lies beyond the phenomenal group of corporators[1]—does no act, speaks no word, thinks no thought, appoints no agent. Also we may observe, and in history this is important, that this theory might play into the hands of a Prince or princeling inclined to paternal despotism. Really and truly the property of a corporation—for example a city or university—belongs to no real person or persons, and over the doings of guardians and curators the State should exercise, no mere jurisdiction, but administrative control. Of 'natural rights' there can here be no talk, for 'artificial persons' can have no natural rights. Furthermore, the strict confinement of the *persona ficta* within the sphere of Private Law may escape notice in a country where (to use foreign terms) 'publicistic' matter has been wont to assume 'private-rightly' form in a fashion that some would call shamefully medieval but others enviably Germanic. The Savignian corporation is no 'subject' for 'liberties and franchises' or 'rights of self-government.' Really and 'publicistically' it can hardly be other than a wheel in the State's machinery, though for the purposes of Property Law a personification of this wheel is found to be convenient. Lastly, some popular thoughts about 'body' and 'members' must needs go overboard. The guardian is no 'member' of his ward; and how even by way of fiction could a figment be composed of real men? We had better leave body and members to the vulgar.

Savigny wrote on the eve of a great upheaval. A movement in which England played a prominent and honourable part was thrusting the joint-stock company to the very forefront of those facts whence a theory of corporations must draw its sustenance. Whatever may be said of municipal and other communes, of universities and colleges and churches, the modern joint-stock company plainly resents any endeavour to 'construe' it as a piece of the State's mechanism, though we may profitably remember that

[1] Pollock, Contract, ed. 6, p. 108: 'If it is allowable to illustrate one fiction by another, we may say that the artificial person is a fictitious substance conceived as supporting legal attributes.' But this happy phrase is not by itself an adequate expression of Sir F. Pollock's view. See the context.